

26TRCV00845 26TRCV00845

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Case Number: 26TRCV00845 Hearing Date: August 10, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Monday – August 10, 2026

Calendar No.

PROCEEDINGS

Jet

Pro, Inc. v. Forward Power Group, LLC, et al.

26TRCV00845

1.

Forward Power

Group, LLC's Demurrer to Complaint

2.

Forward Power

Group, LLC's Motion to Strike Portions of Complaint

TENTATIVE RULING

Forward Power Group, LLC's Demurrer to Complaint is sustained

without leave to amend, in part, and with 20 days leave to amend, in part.

Forward Power Group, LLC's Motion to Strike Portions of Complaint is deemed moot.

Background

Plaintiff filed the Complaint on March 5, 2026.

Plaintiff alleges the following facts. Defendant conducted repairs on a truck owned by Plaintiff. However, after the repairs and during a test drive, the engine seized and caught fire. Plaintiff alleges the following causes of action: 1. Breach of Written Contract 2.

Negligence 3. Breach of Implied Warranty of Fitness 4. Breach of Implied Covenant of Good Faith and Fair Dealing 5. Breach of Implied Warranty of Workmanlike Performance 6. Respondeat Superior 7. Gross Negligence 8. Res Ipsa Loquitur.

Meet and Confer

Defendant filed meet and confer declarations in sufficient compliance with CCP § 430.41 and CCP § 435.5. (Decls. Marco Garcia Castillo).

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.)

Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of

Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case

"with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams

(1961) 193 Cal.App.2d 636, 643-644.)

"Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer."

(Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609–610.) Under Code Civil Procedure §

430.10(f), a demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendant demurs to the seventh cause of action for

Gross Negligence for failure to state sufficient facts to state a cause of action.

Seventh Cause of Action for Gross Negligence

Defendant's demurrer to the seventh cause of action is

sustained without leave to amend. Plaintiff fails to state sufficient facts to state a cause of action. However, 20 days leave to amend is provided to amend the second cause of action for Negligence.

The elements of negligence are the existence of a

legal duty of care, breach of that duty, causation, and damages. See

McIntyre v. The Colonies-Pacific, LLC (2014) 228 Cal.App.4th

664, 671. Gross negligence is simply a standard of negligence. "Gross

negligence is the exercise of so slight a degree of care as to raise a

presumption of conscious indifference to the consequences. The state of mind of

a person who acts with conscious indifference to the consequences is simply,

"I don't care what happens." The test is objective: whether a reasonable person

in the defendant's position would have been aware of the risk involved." Brown

v. El Dorado Union High School Dist. (2022) 76 Cal.App.5th 1003, 1027–1028

(internal citations and quotations omitted). "In reality, California does not

recognize a distinct cause of action for 'gross negligence' independent of a

statutory basis." Saenz v. Whitewater Voyages, Inc. (1990) 226

Cal.App.3d 758, 766, fn. 9.

Thus, in California, gross negligence is not considered a separate and distinct cause of action from negligence. Gross negligence is treated as simply a degree of negligence. "In summary, we conclude that no defensible reason exists for categorizing wilful and wanton misconduct as a different kind of negligence not suitable for comparison with any other kind of negligence.... We apply an old axiom, 'when the need for a rule ceases the rule ceases.'" *Continental Ins. Co. v. American Protection Industries* (1987) 197 Cal.App.3d 322, 330 (emphasis in original). "California does not recognize a distinct common law cause of action for gross negligence apart from negligence." *Epochal Enterprises, Inc. v. LF Encinitas Properties, LLC* (2024) 99 Cal.App.5th 44, 55.

Plaintiff

alleges that "Defendant's conduct (via its Tech) in releasing the Truck for road use with an active oil pressure code, failing to adequately test the Truck, and disregarding critical safety issues constituted a want of even scant care and an extreme departure from the ordinary standard of conduct." (Complaint, ¶ 79). Here, however, Plaintiff set forth an improper separate cause of action for "gross negligence" rather than including allegations of "gross negligence" within the cause of action for Negligence. Thus, the demurrer to the seventh cause of action is sustained without leave to amend. The Court provides 20 days leave to amend to include allegations of gross negligence within the already stated negligence cause of action.

In addition, for future reference, the Court reminds the parties that whether conduct rises to the level of gross negligence as opposed to ordinary negligence is generally a question of fact. *Decker v. City of Imperial Beach* (1989) 209 Cal.App.3d 349, 358. Factual issues that are required to be deciphered and adjudicated to determine if a party's conduct rises to the level of gross negligence is generally not the function of a demurrer.

Defendant's demurrer to the seventh cause of action is sustained without leave to amend. Twenty days leave to amend is provided to allow Plaintiff to amend the second cause of action if Plaintiff wishes to do so.

Motion to
Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading.

CCP § 436(a). The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. CCP § 436(b).

The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. CCP § 436.

The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP § 437.

Defendant moves
to strike the following:

“1. Page 14, paragraph 79, lines 15–18, which reads,

“Defendant’s conduct in releasing the Truck for road use with an active oil pressure code, failing to adequately test the Truck, and disregarding critical safety issues constituted a want of even scant care and an extreme departure from the ordinary standard of conduct.”

2. Page 14, paragraph 80, lines 19–20, which reads,

“Defendant’s grossly negligent conduct was the direct and proximate cause of Plaintiff’s damages.”

3 . Page 14,

paragraph 81, lines 21–23, which reads, “As a direct and proximate result of Defendant’s gross negligence, Plaintiff suffered damages, including but not limited to repair costs, out-of-pocket expenses, and lost revenue, in an amount to be proven at trial.”

4 . Page 16, paragraph 3, lines 1–2, which reads,

“Award punitive damages to Plaintiff against Defendant for gross negligence, in an amount to be determined by the Court according to proof and as permitted by law.”

The motion to strike is deemed moot pursuant to the Court’s ruling sustaining without leave to amend the seventh cause of action for gross negligence.

Defendant is ordered to give notice of this ruling.